

ORDER SHEET
IN THE LAHORE HIGH COURT,
BAHAWALPUR BENCH, BAHAWALPUR
JUDICIAL DEPARTMENT

Crl. Org. No.1271 of 2021/BWP

The State
vs
Malik Imtiaz Mahmood Awan, Advocate

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary
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01	27.01.2022	Jam Muhammad Afzal Ghasoora, A.A.G. Mr. A. R. Aurangzeb, Advocate with Malik Imtiaz Mahmood Awan, respondent.
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This contempt petition arises out of show-cause notice which was issued by this Court against the respondent/ Malik Imtiaz Mahmood Awan, Advocate, a learned counsel of this court, vide order dated 14.12.2021 passed in W.P. No. 3870 of 2017/BWP as on his behalf a written request of adjournment was submitted in the said petition, whereas he was not the counsel for either of the parties to the said petition.

2. The respondent accompanied by his learned counsel at the outset claims that he is innocent and pray for the discharge of notice issued to him for committing contempt of court and droppage of proceedings by stating that the respondent has not committed contempt of this court, rather his application for general adjournment for some other cases has been misused by some unknown person with *mala fide* intention and the respondent had nothing to do with the same.

3. In order to appreciate contentions of the respondent, the relevant portion of the order dated 14.12.2021, whereby show-cause notice has been issued to the respondent is reproduced below:

*“There is written request for
adjournment submitted by Malik Imtiaz*

Mahmood Awan, Advocate. The perusal of the record reflects that he is not the counsel for either of the party as his no power of attorney is available on the file. Ex- facie it appears that he has submitted this general adjournment application in this case in order to mislead this court and to thwart the proceedings of this Court which amounts to contempt of Court.

2. Let a notice be issued to Malik Imtiaz Mahmood Awan, Advocate to show-cause as to why proceedings may not be initiated against him before next date of hearing. Office to prepare separate file in this context.

3. Relist on 27.01.2022.”

4. In furtherance of the afore-mentioned order passed by this Court the instant Contempt of Court petition was initiated by the office of this court and show cause notice in the following terms was issued to the respondent.

“SHOW CAUSE NOTICE

To

Malik Imtiaz Mahmood Awan, Advocate, Bahawalpur.

WHEREAS as per order dated 14.12.2021 passed by Hon'ble Mr. Justice Anwaarul Haq Pannun, a written request for adjournment was submitted by you. The perusal of the record reflects that you are not the counsel for either of the party as no power of attorney is available on the file. Ex-facie it appears that you had submitted this general adjournment application in this case in order to mislead this court and to thwart the proceedings of this Court which amounts to Contempt of Court.

THEREFORE, a Show Cause Notice is issued to you to explain as to why proceedings may not be initiated against you before next date of hearing i.e. 27.01.2022.

GIVEN UNDER MY HAND AND THE SEAL OF THE LAHORE HIGH COURT, BAHAWALPUR BENCH, BAHAWALPUR DATED 24th DAY OF DECEMBER, 2021.

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*Assistant Registrar (Writ)
For Deputy Registrar (Judicial)
24.12.2021.”*

5. Reply has been submitted to show-cause notice by the respondent, wherein, it is mentioned that the

respondent had only sought general adjournment for 14.12.2021 in four cases, details of which are type written in his application, wherein the respondent was duly appointed counsel and it was strange to note after receipt of above notice that in addition to the typed listed cases, the W.P. No. 3870-2017 was inserted by pen in handwriting. The insertion of above case is deemed to be *mala fide* written by someone else, probably by someone who wanted an adjournment, as the respondent due to fever flu did not appear before any court on 14.12.2021. Needless to reiterate that it is bounden duty of the office to report about the cases wherein "the power of attorney of the counsel was duly available". As such the insertion was deliberate and without any authorization. The undersigned does not imagine to mislead this Hon'ble Court nor any insertion of above titled case was made by the undersigned. Photocopy of the approved list of General adjournment by Hon'ble Senior Judge without any interpolation received by Waleed Akram clerk counsel on 14.12.2021 is attached.

6. The contents of the application for general adjournment filed by the respondent, which was allowed by the Hon'ble Senior Judge of this Bench of the Lahore High Court are reproduced below for clarity:

"To,
The Deputy Registrar,
Lahore High Court, Bahawalpur Bench,
Bahawalpur.
APPLICATION FOR GENERAL ADJOURNMENT
FOR 14.12.2021

Respected Sir,

It is submitted that the undersigned is suffering from flu and high fever, therefore, he is unable to appear before this Hon'ble Court for 14.12.2021. It is, therefore, requested that the cases fixed for 14.12.2021 may kindly be adjourned to some other dates.

dated: 13.12.2021

MALIK IMTIAZ MAHMOOD AWAN
Advocate Supreme Court of Pakistan
Seat at Bahawalpur
C. C. No 25997

List of cases:

C.R. No. 410-2018 14.12.2021 From Respondents No. 2 to 9.
W.P. No.6823-2020 14.12.2021 From Petitioners
W. P. No.7854-2018 14.12.2021 From Petitioners
W.P. No.3831-2014 14.12.2021 From Respondent no. 3”

7. The perusal of the application for general adjournment filed by the respondent shows that the respondent had only sought adjournment for the cases mentioned in type writing in his application for adjournment, the details of which are provided above. The application for adjournment filed in the case of Writ Petition No. 3870 of 2017/BWP in handwriting mentioned the number of the said petition on a copy of the said application, which appears to have been inserted to get the said case adjourned. However, it is not clear as to who has written the said number on the afore-said application in handwriting and placed the same on the file. Even the learned AAG who has appeared in the case on behalf of the State states that nothing can be stated with certainty as to who had filed the aforementioned application in court to seek adjournment. Besides it cannot be concluded with certainty that the respondent was the beneficiary of the said adjournment of the case, especially in view of the fact that his link with the case cannot be established with certainty.

8. This Court can proceed against a contemnor for committing Contempt of Court of three types provided in Definition Clause of Contempt of Court Ordinance, 2003, which are (1) Civil Contempt (2) Criminal Contempt and (3) Judicial Contempt, which are reproduced below:-

“2. Definitions.---In this Ordinance, unless there is anything repugnant in the subject or context,---

(a) “civil contempt” means the willful flouting or disregard of,---

(i) an order, whether interim or final, a judgment or decree of a Court;

- (ii) *a writ or order issued by a Court in the exercise of its Constitutional Jurisdiction;*
- (iii) *an undertaking given to, and recorded by, a Court;*
- (iv) *the process of a Court;*
- (b) *“criminal contempt” means the doing of any act with intent to, or having the effect of, obstructing the administration of justice;*
- (c) *“judicial contempt” means the scandalization of a Court and includes personalized criticism of a Judge while holding office.”*

However, for proceeding for Contempt of Court against a contemnor, firstly his case must fall within the definition of at least one of different types of Contempt of Court mentioned above and secondly there is material available to connect him with committing of Contempt. In the present case although the allegations levelled against the respondent may make him liable to be proceeded against for committing Contempt of Court under the Civil and Criminal Contempt defined in 2(a)(iv) and (b) mentioned above if the same is proved, however, nothing is available on the record to connect him with the same in view of explanation given by him supported by his affidavit and this Court has no reason to disbelieve the stance taken by the petitioner to proceed further with this matter keeping in view of above the explanation given by the respondent, which appears to be plausible and it appears that some other party has misused his duly allowed application for adjournment without his knowledge and authorization with *mala fide* intention, hence, this Court is not inclined to proceed further with the proceedings initiated against the respondent for allegedly committing Contempt of Court and he is exonerated from the charges/allegations against him. Resultantly, the show-cause notice mentioned above is withdrawn.

9. In view of the foregoing discussion, this Contempt of Court petition is **disposed of**, accordingly.

(MUZAMIL AKHTAR SHABIR)

JUDGE

*Naveed Khan**

APPROVED FOR REPORTING